FOR ARGUMENT

(12)

NO. 96-79

Supreme Court, U.S.
FILED
JAN 10 1997
CLERK

In the Supreme Court of the United States

OCTOBER TERM, 1996

SANDRA JEAN DALE BOGGS
Petitioner

vs.

THOMAS F. BOGGS, HARRY M. BOGGS
AND DAVID B. BOGGS
Respondents

ON WRIT OF CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE FIFTH CIRCUIT

REPLY BRIEF OF PETITIONER ON THE MERITS

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4 pp

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REPLY BRIEF OF PETITIONER

May it please the Court:

Petitioner respectfully submits this brief in reply to the briefs of the Respondents, and the State of Louisiana.

Initially, we point out that since the constitutionality of Louisiana's community property laws is not drawn into question, the State of Louisiana has no standing to file a brief in this matter pursuant to Rule 294 (c), as it has done.

The position asserted by Respondents and supported by

the State's Brief, is that Respondents can circumvent the preemption clause of ERISA (29 USC sec. 1144 (a)) by contending that they are not claiming an interest in the pension plan, but only in the proceeds after distribution to the beneficiary.[1]

Interestingly enough, the authors of the State's brief admit that the deceased wife, Dorothy Boggs, did not receive any rights "*in rem*" in the pension plan[2] - indeed they acknowledge that "**Due to preemption** the first Mrs. Boggs could have no interest *in rem* in those [pension plan] funds". (State's brief p. 18) And, the Respondents likewise acknowledge that they have no interest in the "plan" and attempt to skirt the central issue of this case by claiming that: "The Boggs children seek to enforce a right which in no way touches the pension plan" (Respondents' brief p. 32), and "There is no way under Louisiana law that the sons of Dorothy and Isaac Boggs could be transferred a right to a 'benefit payable' under the plan". (Respondents' brief p. 37)

We respectfully submit, however, for the reasons set forth at pages 14-15, and pages 18-20 of Petitioner's original brief in response to the same erroneous theory announced by the Fifth Circuit's opinion that: "Our decision relates not to the plan but to the disposition of the proceeds only after payment to the designated beneficiary" (82 F.3d at p. 97), trying to separate the benefits from the plan is a distinction without a difference, especially since **rights to the plan**

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[1] See eg. Respondents' brief at pp.5, 32, 33-34, 37-38, and State's brief at pp. 1, 5, 12.

[2] State's brief pp. 5, 16, 18

"benefits" are based on ownership rights to an interest in the "plan".

Congress was abundantly clear when it mandated that:

> "* * * the provisions of this title and title IV ***shall supersede any and all State laws*** insofar as they may now or hereafter relate to any employee benefit plan * * * ". 29 USC sec 1144 (a) (Emphasis added)

And, all parties and *amicus curiae* admit that preemption clause bars Respondents from claiming any interest in the plan. Without any rights in the plan, Respondents have no rights to an accounting, for they have no rights to the benefits payable under the plan, because they cannot do indirectly what they cannot do directly.

Respectfully submitted

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January, 1997